

No. 121124

 IN THE SUPREME COURT OF ILLINOIS

BETTER GOVERNMENT ASSOCIATION,	)	Appeal from the Appellate
	)	Court, First District, No. 15-1356
	)	
Plaintiff-Appellant,	)	
	)	
-vs-	)	There on appeal from the Circuit Court of
	)	Cook County, Chancery Division, Illinois
	)	No. 14 CH 12091
ILLINOIS HIGH SCHOOL ASSOCIATION;	)	
CONSOLIDATED HIGH SCHOOL	)	
DISTRICT 230,	)	Hon. Mary L. Mikva, Judge Presiding
	)	
Defendants-Appellees.	)	

 OPENING BRIEF FOR PLAINTIFF-APPELLANT
 BETTER GOVERNMENT ASSOCIATION

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I. NATURE OF THE ACTION

This is a Freedom of Information Act case seeking the production of records of the Illinois High School Association under two independent legal theories: (1) IHSA is a subsidiary public body as that term is used in FOIA; and (2) IHSA performs a governmental function for member public school districts under FOIA Section 7(2).

II. ISSUES PRESENTED

1. Whether an entity that is a state actor for civil rights purposes, has sought governmental tort immunity, and has said it is owned and controlled by government and performs public business, is a subsidiary public body under FOIA.

2. Whether the regulation and promotion of high school athletics and other competition is a governmental function.

III. STANDARD OF REVIEW

This Court reviews orders granting motions to dismiss under Sections 2-615 and 2-619 *de novo*. *Kean v. Wal-Mart Stores, Inc.*, 235 Ill. 2d 351, 361 (2009).

IV. JURISDICTION

This Court granted BGA's timely filed petition for leave to appeal. Jurisdiction is proper under Rule 315.

V. STATUTES INVOLVED

This case involves the following provisions of the Freedom of Information Act:

"Public body" means all legislative, executive, administrative, or advisory bodies of the State, *** school districts and *** any subsidiary bodies of any of the foregoing[.] 5 ILCS 140/2(a).

A public record that is not in the possession of a public body but is in the possession of a party with whom the agency has contracted to perform a governmental function on behalf of the public body, and that directly relates to the governmental function and is not otherwise exempt under this Act, shall be considered a public record of the public body, for purposes of this Act. 5 ILCS 140/7(2).

VI. STATEMENT OF FACTS

A. IHSA And Its Promotion And Regulation Of High School Competition

i. Prior IHSA Litigation History On Related Issues

It was established decades ago that IHSA engages in state action for the purposes of civil rights liability. IHSA has admitted this to be true, and the Seventh Circuit has held it to be so. *Griffin High School v. Illinois High School Ass’n*, 822 F.2d 671, 674 (7th Cir. 1987) (“As a preliminary matter, we note that the presence of state action is not in dispute in this case. Public schools make up 85% of the IHSA’s membership, and although the IHSA is a purely voluntary association, the overwhelmingly public character of the IHSA membership is sufficient to confer state action for the purposes of § 1983.”).

In 2002, IHSA and its executive director were sued for defamation and negligence by the principal of an IHSA member school. *Hood v. Illinois High School Ass’n*, 359 Ill. App. 3d 1065 (2005); C00070. IHSA moved to dismiss, claiming the affirmative defense of immunity under the Local Governmental and Governmental Employees Tort Immunity Act (“Tort Immunity Act”). *Id.* To support its immunity claim, IHSA stated a number of facts about what IHSA does and its relationship with public schools. See Supplemental Record, Vol. I, C00127.¹ These include the following:

¹ The original record prepared by the circuit court inadvertently omitted several filings, requiring Plaintiff to file a Supplemental Record. Unless otherwise specified, all citations are to Volume I of the Supplemental Record (“Supp.R.VI”).

The IHSA's membership is comprised of public and private schools from around the State of Illinois. There are six hundred and thirty-nine (639) public high school member schools, and one hundred eighteen (118) private high school member schools. Stated differently, approximately 85% of the member schools are public high schools. C00137.

Not only is the IHSA governed by a Board of Directors comprised, overwhelmingly, of representatives of public schools, its overwhelmingly local public school membership "owns" the association and exercises its control over the organization by electing representatives, including directors, to operate the association, and by engaging in the legislative process through which the constitution, by-laws, rules and policies of the association are enacted. Clearly, local governmental control of the organization is pervasive. C00141.

Insofar as every resident of the State of Illinois is in a high school district, and the overwhelming majority of high school students in the state attend member schools, which themselves sponsor and organize athletic competition, there can be little doubt that the business of the association is public business. C00139.

As a non-profit organization, the purpose of the IHSA benefits the public in coordinating the efforts of individual school districts throughout the state. As such, the IHSA is an agency of the collective schools of the State[.] C00139-140.

[N]ot only do local governmental entities "own" the association, employees of the local entities control the IHSA's governing body. As 90% (or during the time period encompassed by Plaintiff's Complaint, 100%) of the IHSA's governing board is comprised of public high school principals, it is evident that the IHSA is enmeshed with and under the control of "local government[.]" C00141.

[T]he IHSA is a local governmental entity because that is indisputably the character of its membership. C00137.

The trial court in *Hood* agreed that IHSA "is tightly enmeshed with local governments" and that its operations are controlled by local school district members, and reasoned that while IHSA was not a "not-for-profit corporation," as a voluntary association it was the equivalent of one. C00124. The appellate court reversed the trial court for the simple reason that IHSA was not a "not-for-profit corporation," as the statute specifically required, and therefore could not qualify as a local public entity. C00124-125.

Finally, in 2010, the Attorney General Public Access Counselor declined to review formally the question of whether IHSA is a public body under FOIA, noting in a preliminary review that “IHSA is a private, not-for-profit organization and thus, does not fall within the definition of a ‘public body’[.]” R.V1, C00277. It does not appear, however, that the requester in that matter, or IHSA, made the PAC aware of IHSA’s by-laws and constitution (which are discussed in the next section of this brief), the state-actor ruling against IHSA, or the numerous facts claimed by IHSA in the *Hood* case. *Id.*

ii. IHSA’s Governing Documents

The purpose of IHSA is to provide leadership for the development, supervision and promotion of good sportsmanship in interscholastic competition and other activities. C00037; C00049. According to IHSA, participation in such interscholastic activities offers eligible students experiences in an educational setting that provide enrichment to the educational experience. *Id.* IHSA’s objectives include stressing the educational importance, cultural values, appreciations and skills involved in all interscholastic activities, to encourage economy in the time of the student and teacher personnel devoted to interscholastic activities, and to promote only those activities that enhance the accomplishment of desired educational goals. C00050. IHSA regulates the interscholastic activities in which its member schools engage. C00049.

According to its constitution, IHSA can require public schools to pay dues as a condition of membership. C00050. IHSA board members are nominated and selected by principals of member schools, which are overwhelmingly public schools. C00052-53. The IHSA board is required to conduct all of IHSA’s business and hire IHSA’s employees. C00053. The board is similarly required to determine all necessary IHSA expenditures. C00054. The board has complete authority, subject to the governing

documents, to organize and conduct statewide interscholastic activities that may or may not lead to state championships. *Id.* The board has final authority to decide all eligibility disputes. C00054-55. The board is responsible for levying entry fees and assessments for interscholastic competitions. C00056.

Schools that wish to participate in competitions with IHSA members must comply with IHSA rules. C00061. IHSA rules exclusively govern such competitions. *Id.* Member-school principals are responsible to IHSA for matters pertaining to both athletic and non-athletic activities at their schools and the conduct of their schools' teams. *Id.* Member schools may only form cooperative athletic teams or activity programs with the approval of IHSA. C00062. IHSA rules impose ethics and sportsmanship obligations on students, school staff, boards of education, spectators, and all other persons connected directly or indirectly with a member school. C00065.

IHSA restricts the competitive activities of students at member schools to only those approved by IHSA. C00065-66. IHSA restricts schools from employing coaches that do not meet IHSA criteria. C00067. Member-school students may only engage in athletic activities during seasons authorized by IHSA, and IHSA regulates scrimmages, private lessons, use of school equipment, participation on all-star teams, and even transportation to the site of practice or competition. C00069-70. IHSA sets the standards that apply to physical examinations of students necessary to participate in athletics. C00072. IHSA regulates the use of dietary supplements. C00073.

Students at member schools who wish to participate in competitions that IHSA has organized must submit to IHSA's eligibility rules. C00074-103. These include rules regarding attendance, scholastic standing, residence transfer, age, recruiting, amateurism,

use of assumed names, independent team participation, coaching, all-star participation, misbehavior during contests, summer participation, open gym limitations, and others. *Id.*

Among many other rules and principles, the IHSA by-laws state:

Q. What is the “fundamental principle” underlying the residence by-laws? A. High school sports are best controlled and conducted fairly when students reside full time with their parents and attend high school in the district in which they reside with their parents. Departure from this basic premise requires circumstances which are within the parameters established within Article 1.460 of the IHSA Constitution, which do not conflict with the overall purpose and scope of the by-laws. C00079.

The student, who (a) is an orphan; (b) is a child of divorced, legally separated, or unmarried parents with respect to whom there has not been a change in custody ordered by a court of proper jurisdiction; or (c) is a ward of the state who transfers attendance from one high school to another high school, shall be subject to the eligibility provisions of Sections 3.043.1-3.043.3 as if the student resided with his/her parent(s), provided that following the transfer, the student continues to reside with the same family, foster family, group home or other unit or entity after the transfer as prior to and at the time of the transfer. *Id.*

Q. A school has a donor who wants to give funds to underwrite the tuition and fees of a needy student. It has a process for determining “need” which is objective and does not involve athletic or activity participation in any way. May the donor be permitted to meet, interview and endorse the selection of the needy student prior to the allocation of this financial aid? A. No. C00087.

Q. May a school permit incoming freshmen to participate in high school sponsored open gym programs during or outside the school year? A. Yes, provided the program is conducted in accordance with the open gym by-law. C00088.

Q. If a student participates in a road race sponsored by (1) a member school; (2) a local business; or (3) a private running club, may the student receive a T-shirt instead of a medal or trophy for winning or placing in the race? A. In all three of these instances the student may accept a T-shirt or other merchandise reward, if the fair market value of the award is less than \$75. C00089.

During the school season for a given sport, in a school which maintains a school team in that sport, a student shall not participate on any non-school team, nor as an individual unattached in non-school competition, in that given sport or in any competition that involves the skill of the sport in question. C00091.

Q. May a student who attends a school which does not maintain a school team in a given sport participate in practice sessions at a neighboring school which does maintain a school team in that sport? A. No. C00093.

[Students] shall have been enrolled and in attendance not later than the beginning of the eleventh school day of the semester. Exception may be considered only if written verification that delay in enrollment or attendance is caused by illness of the students or their immediate family or by other circumstances deemed acceptable by the Board of Directors which are submitted to the Executive Director for presentation to the Board of Directors. C00074.

[Students] shall not have any lapse of school connection during any given semester of greater than ten consecutive school days. Lapse of school connection for greater than ten consecutive school days shall render them ineligible for the remainder of the entire semester. Exceptions may be considered only if written verification that lapse in school connection is caused by illness of the students or their immediate family or by other circumstances deemed acceptable to the Board of Directors which are submitted to the Executive Director for presentation to the Board of Directors. *Id.*

Q. May a school count physical education classes toward academic eligibility requirements? A. Yes. Students may also receive credit for physical education waivers. C00076.

After the official start date of an IHSA sport season for the current school year, if a student changes attendance from that high school to another high school, the student shall be ineligible for the remainder of the school year in any sport in which he/she participated or was participating in a practice or interscholastic contest in the current school year at the school from which the transfer occurs[.] C00081.

Schools are not prohibited from conducting academic recruitment programs, programs which may include information concerning the school's extracurricular offerings. However, such recruitment programs must be designed to provide an overview of the academic and extracurricular programs offered by a school and are not to be used as a subterfuge for recruiting students for athletic purposes. C00085.

Q. If a family is moving into the area and has stopped by the athletic office because they are "shopping" for a school, may specifics about a particular sport be discussed? A. Yes, provided "specifics" includes only factual information and the family initiates the contact. However, the family must be directed to the administrative or admissions office. C00086.

Q. If a student-athlete who is selected by audition is paid \$250 to appear in a TV commercial for athletic equipment, is the student in violation of the amateur rules? A. No. (By-law 3.083) This is not a reward for participation in an athletic contest; rather, it is payment for specific services rendered. C00090.

Students may participate in a tryout for a non-school athletic team while a member of a high school team in the same sport, provided the tryout is exclusively a demonstration of skills with no practice or instruction involved. A student shall be considered to be a member of a school team when he/she engages in any team activity, including but not limited to tryouts, drills, physical practice sessions, team meetings, playing in a contest, etc., on or after the date specified in Bylaw 5.000 and its sub-sections. C00092.

Q. May a student who is a member of the school team in 12-inch fast pitch softball, play during the girls softball season for a slow pitch team in a recreation 12-inch slow pitch league? A. No. During the school season, a student shall not participate on any non-school team that involves the skill of the sport in question. C00093.

No student at a member school shall participate on an all-star team in basketball, football, soccer or volleyball during the student's high school career until completing their interscholastic athletic eligibility in that particular sport. A student may participate in no more than three (3) all-star contests in a sport. C00095.

Students participating in interscholastic athletic contests in violation of the By-laws, or other persons found to be in gross violation of the ethics of competition or the principles of good sportsmanship, may be barred by the Board of Directors from interscholastic contests. C00096.

Students may participate in a summer school class taught by a coach or other faculty member from their school and which offers instruction in interscholastic sports, provided the class is not restricted to students who have been certified eligible for participation in interscholastic athletics and the class is approved by the local Board of Education. *Id.*

In addition to these general requirements, IHSA imposes even more requirements specific to each of the various sports or other competitive activities. C00103-116. IHSA rules further provide that students deemed by IHSA to have been affected by undue influence to secure or retain their attendance at a member school shall be permanently ineligible for competition at that school. C00117. IHSA has the authority to impose both

specified and unspecified penalties against a student ejected from an event for unsportsmanlike conduct. *Id.*

In addition to the authorities contained in its governing documents, state law bestows a plethora of responsibilities and benefits on IHSA specifically:

Any association [elsewhere defined as IHSA specifically] which has as its purpose promoting, sponsoring, regulating, or in any manner providing for interscholastic athletics or any form of athletic competition among schools and students within this State is not liable for defamation, except for actual malice. 745 ILCS 54/1.

Each school board shall adopt a policy regarding student athlete concessions and head injuries that is in compliance with the protocols, policies, and by-laws of the Illinois High School Association. 105 ILCS 5/10-20.54(b).

The Illinois High School Association shall make available to all school districts, including elementary school districts, education materials, such as visual presentations and other written materials, that describe the nature and risk of concussions and head injuries. Each school district shall use education materials provided by the Illinois High School Association to educate coaches, student athletes, and parents and guardians of student athletes about the nature and risk of concussions and head injuries, including continuing play after a concussion or head injury. 105 ILCS 5/10-20.54(c).

The IHSA has the exclusive authority to promulgate a plan of [insurance] coverage necessary to ensure compliance with this Section. The IHSA shall provide a group policy providing the coverage necessary to comply with this Section. Public school districts and non-public schools may purchase the coverage necessary to comply with this Section by participating in the group policy. 105 ILCS 5/22-15(c).

To facilitate communication and coordination between the General Assembly and the Illinois High School Association on matters relative to the continuing development of interscholastic athletic and activity participation among secondary school students in Illinois, the Governor shall appoint, from the membership of the General Assembly, liaison representatives to meet with the Board of Directors of the Illinois High School Association at regular meetings of that Board. 105 ILCS 5/22-24.

Except as specifically stated in this Section, equal access to programs supported by school district funds and comparable programs will be defined in rules promulgated by the State Board of Education in consultation with the Illinois High School Association. 105 ILCS 5/27-1.

Equal access to programs supported from school district funds and comparable programs will be defined in rules promulgated by the State Board of Education in consultation with the Illinois High School Association. 105 ILCS 5/24-18.

B. District 230

District 230 is an IHSA member school. C00005. A District 230 official serves on the IHSA board. *Id.* IHSA performs its various functions on behalf of District 230 and other member schools. C00010.

C. BGA's FOIA Requests And IHSA's And District 230's Denials

On June 5, 2014, BGA requested the following information from IHSA under FOIA: "[1.] Any and all IHSA contracts for accounting, legal, sponsorship and public relations/crisis communications services for the 2012-13 and 2013-14 fiscal years. This should include, but not be limited to, the IHSA's contracts with Home Team Marketing and Striegel Knobloch & Co. [2.] Any and all IHSA sponsorship contracts/agreements covering the 2012-13 and 2013-14 fiscal years. This should include, but not be limited to, contracts/agreements with Nike, Gatorade and Country Financial. [3.] Any and all licensed vendor applications . . . for companies licensed in the 2013-14 fiscal year." C00149. IHSA denied BGA's request, stating: "We are a Bloomington based non-profit (501 c 3) that is not subject to FOIA." C00150.

On July 2, 2014, BGA requested under FOIA Section 7(2) from District 230 the IHSA records that IHSA refused to produce. C00151. In response to BGA's request, District 230 stated that it had no responsive records. C00152. C00153. District 230 did not seek any records from IHSA. C00154.

D. Circuit Court Proceedings

The circuit court granted IHSA's motion to dismiss under Section 2-619 and granted District 230's motion to dismiss under Section 2-615. In its ruling on IHSA's

motion, the circuit court disregarded IHSA's factual assertions in the *Hood* case because it determined the statements were "not facts." Supp.R.VIII, 41:1-12, 64:19-22. The court also held that education is not a sufficiently governmental function for FOIA to apply. Supp.R.VIII, 65:6-17, 93:22-98:5.

E. Appellate Court Proceedings

The First District affirmed the circuit court. It set forth a narrow test for "governmental function" that applies only to functions that a public body is legally required to perform, while excluding the vast number of discretionary functions that public bodies can and do perform for the benefit of the general public. *Better Government Ass'n v. Illinois High School Ass'n*, 2016 IL App (1st) 151356 at ¶ 26. Applying that construction of the law to the facts of this case, the First District found that organizing and regulating high school athletics and other competitions on behalf of the vast majority of public and private schools in this state was not a governmental function or related to public business because schools were not legally required to offer any such opportunities to their students. *Id.* at ¶ 46. The First District also declined to consider the factual admissions made by IHSA in the *Hood* case and found, as a result, that the subsidiary body factors favored IHSA. *Id.* at ¶ 34.

VII. LEGAL STANDARDS

A. Motions to Dismiss

A circuit court may dismiss a complaint under Section 2-615 only when it is apparent that no set of facts can be proved that will entitle a plaintiff to relief. *E.g.*, *Marshall v. Burger King Corp.*, 222 Ill. 2d 422, 429 (2006). Where the relevant facts are solely within a defendant's knowledge, "a complaint which is as complete as the nature

of the case allows is sufficient,” and discovery should be permitted. *Yuretich v. Sole*, 259 Ill. App. 3d 311, 313 (1994) (reversing order granting motion to dismiss).

A motion to dismiss under Section 2-619 is permitted only if the pleadings, depositions, and affidavits demonstrate that an affirmative matter, about which there is no genuine issue of material fact, defeats the plaintiff’s claim. *E.g.*, *Zedella v. Gibson*, 165 Ill. 2d 181, 185 (1995). A Section 2-619 motion to dismiss is “a drastic means of disposing of litigation and, therefore, should be allowed only where the right of the moving party is clear and free from doubt.” *Williams v. Manchester*, 228 Ill. 2d 404, 417 (2008). The movant must admit the plaintiff’s well-pled allegations and all reasonable inferences from those allegations. *Wackrow v. Niemi*, 231 Ill. 2d 418, 422 (2008). The affirmative matter must “be something more than evidence offered to refute a well-pleaded fact in the complaint as such well-pleaded facts must be taken as true.” *Serafin v. Seith*, 284 Ill. App. 3d 577, 583 (1996). The motion must be denied where there is a genuine issue of material fact. *E.g.*, *Springfield Heating And Air Conditioning, Inc. v. 3947-55 King Drive At Oakwood LLC*, 387 Ill. App. 3d 906, 909 (2009).

All evidence and pleadings must be taken in the light most favorable to the non-movant. *E.g.*, *Wackrow*, 231 Ill. 2d at 422. A plaintiff may rely not only on counter-affidavits, but also other evidence, to controvert a defendant’s Section 2-619 affidavit. *Epstein v. Chicago Bd. of Educ.*, 178 Ill. 2d 370, 383 (1997). If it cannot be determined with reasonable certainty that the alleged defense exists, the motion should be denied. *A.F.P. Enterprises, Inc. v. Crescent Pork, Inc.*, 243 Ill. App. 3d 905, 912 (1993). In deciding a 2-619 motion, “a trial court cannot determine disputed factual issues solely

upon affidavits and counteraffidavits.” *Id.* If there are factual disputes, “the parties must be afforded the opportunity to have an evidentiary hearing.” *Id.*

B. Evidentiary Admissions

A statement by a party, even if it does not qualify as a judicial admission subject to estoppel, is an evidentiary admission. *In re Marriage of O’Brien*, 247 Ill. App. 3d 745, 749 (1993). Unlike judicial admissions, evidentiary admissions may be controverted, but are nonetheless admissible evidence. *Williams Nationalease, Ltd. v. Motter*, 271 Ill. App. 3d 594, 617 (1995). Statements made by or on behalf of a party in other court proceedings may constitute evidentiary admissions. *Anfinson Plastic Molding Co. v. Konen*, 68 Ill. App. 3d 355, 361 (1979). This is true even as to unverified admissions, pleadings that have been amended, abandoned, or withdrawn, and descriptions of facts in legal briefs. *Bartsch v. Gordon N. Plumb, Inc.*, 138 Ill. App. 3d 188, 197 (1985); *Abruzzo v. City of Park Ridge*, 2013 IL App (1st) 122360, ¶¶ 43, 49-50.

C. FOIA

The General Assembly has made clear that the purpose of FOIA is transparency and accountability:

Pursuant to the fundamental philosophy of the American constitutional form of government, it is declared to be the public policy of the State of Illinois that all persons are entitled to full and complete information regarding the affairs of government and the official acts and policies of those who represent them as public officials and public employees consistent with the terms of this Act. Such access is necessary to enable the people to fulfill their duties of discussing public issues fully and freely, making informed political judgments and monitoring government to ensure that it is being conducted in the public interest.

The General Assembly hereby declares that it is the public policy of the State of Illinois that access by all persons to public records promotes the transparency and accountability of public bodies at all levels of government. It is a fundamental obligation of government to operate openly and provide public records as expediently and efficiently as possible in compliance with this Act.

5 ILCS 140/1. When determining whether information may be kept from the public, courts must interpret the FOIA statute in light of its transparency objectives:

Restraints on access to information, to the extent permitted by this Act, are limited exceptions to the principle that the people of this State have a right to full disclosure of information relating to the decisions, policies, procedures, rules, standards, and other aspects of government activity that affect the conduct of government and the lives of any or all of the people. The provisions of this Act shall be construed in accordance with this principle. This Act shall be construed to require disclosure of requested information as expediently and efficiently as possible and adherence to the deadlines established in this Act.

Id. This requires courts to apply a “liberal construction” in favor of disclosure. *Stern v. Wheaton–Warrenville Community Unit School District 200*, 233 Ill. 2d 396, 405 (2009). Exceptions to disclosure must be “read narrowly.” *S. Illinoisan v. Illinois Dep’t of Pub. Health*, 218 Ill. 2d 390, 416 (2006). While FOIA may traditionally apply to entities like state agencies, municipalities, school districts, and other such entities commonly acknowledged to be governmental, the General Assembly has provided two mechanisms for the public to access information of other entities.

i. “Subsidiary Body”

The definition of “public body” includes “subsidiary bodies.” 5 ILCS 140/2(a). The mere fact that an entity is a “private” entity, such as a not-for-profit corporation, does not preclude a finding that it is a subsidiary body subject to FOIA. *Rockford Newspapers, Inc. v. N. Illinois Council on Alcoholism & Drug Dependence*, 64 Ill. App. 3d 94, 95-96 (1978). While case law on subsidiary bodies is limited and there is no decision yet from this Court, the appellate courts who have decided the issue to date have considered four factors in deciding whether an entity is a subsidiary body under FOIA.²

² Some of these decisions involve the Open Meetings Act, but the question of who is a public body generally or subsidiary body specifically is considered in the same manner in each statute. *Hopf v. Topcorp, Inc.*, 170 Ill. App. 3d 85, 91 (1988).

First, courts have considered the amount of financial support of the entity from the government. *Id.* at 96-97; *Hopf v. Topcorp, Inc.*, 170 Ill. App. 3d 85, 91 (1988) (*Hopf I*). This factor has been given only minimal weight, however, and so even an entity with little or no governmental financial support could still qualify as a subsidiary body. *Id.*

Second, courts have considered whether the entity has a legal existence independent of government resolution. *Rockford Newspapers*, 64 Ill. App. 3d at 95-96; *Hopf I*, 170 Ill. App. 3d at 91. When considering this question, the election of members of the entity's board of directors by government officials weighs in favor of finding the entity to be a subsidiary body. *Rockford Newspapers*, 64 Ill. App. 3d at 95-96. The mere fact that the entity is legally separate from government does not preclude a finding that the entity is a subsidiary body: if the entity was a formal part of government, there would likely be no need for the subsidiary body analysis in the first place.

Third, courts have considered the nature of the functions performed by the entity. *Hopf v. Topcorp, Inc.*, 256 Ill. App. 3d 887, 892 (1993) (*Hopf II*); *Rockford Newspapers*, 64 Ill. App. at 96-97. A distinction has been made between the performance of a governmental function and general services that have only a tangential connection to a governmental function. *Rockford Newspapers*, 64 Ill. App. 3d at 97. A distinction has also been made between proprietary and governmental functions. *Hopf I*, 170 Ill. App. 3d at 92. BGA addresses this factor in additional detail under the "governmental function" provision in FOIA Section 7(2).

Finally, courts have considered the degree of governmental control over the entity. *Rockford Newspapers*, 64 Ill. App. 3d at 95-96; *Hopf I*, 170 Ill. App. 3d at 91-92. When the government exercises day-to-day supervision, the entity is more likely to be

considered a subsidiary body than if the government provides only general supervision. *Hopf I*, 170 Ill. App. 3d at 91-92. It has been said that supervision is of a general nature when it is “intended only to protect the investments made [by government] and to see that the venture becomes self-sustaining.” *Id.* at 92-93. In other words, when government supervision occurs solely for the purpose of protecting the government’s interests, this factor supports a finding that the entity is not a public body; when government supervision is more extensive and occurs for the benefit of the entity itself, this factor supports a finding that the entity is a public body.

These factors are a good start, but are too restrictive and should not be made exclusive. For example, *Hopf I* included a well-reasoned dissent by Justice Pincham that would have found the facially private entities responsible for purchasing and managing land as part of a joint venture between government and a private entity a subsidiary body under FOIA. 170 Ill. App. 3d at 93. The dissent looked to the Tax Increment Allocation Redevelopment Act and concluded that it declared the “eradication of blighted areas” to be “essential to the public interest.” *Id.* at 94. It also looked to the agreement between the parties, which stated that the purpose was to “promote several public purposes,” including improving the city’s tax base, providing jobs, and encouraging the development of new business. *Id.* at 95. Finally, it placed primacy on the need for transparency in a democratic society, even when governing occurs through private entities, noting that the “painful and bitter but profitable lessons learned from secrecy in governmental affairs in the Watergate, the Iran-Contra and the Greylord contemporary debacles should not be forgotten or ignored.” *Id.* at 105.

This Court may also be inclined to look to interpretations of the phrase “any not-for-profit corporation organized for the purpose of conducting public business” in the Tort Immunity Act. *E.g. O’Toole v. Chicago Zoological Society*, 2015 IL 118254. That case law sets forth a similar test focused largely on governmental control. *Id.* at ¶ 19. It must be noted, however, that immunities must be narrowly interpreted, as opposed to the provisions of FOIA, which must be liberally construed in favor of transparency. *Compare Van Meter v. Darien Park Dist.*, 207 Ill. 2d 359, 368 (2003) with *Stern v. Wheaton–Warrenville Community Unit School District 200*, 233 Ill. 2d 396, 405 (2009). Thus, an entity that qualifies for tort immunity should be considered a public body under FOIA, but even if an entity is not conducting public business under the Tort Immunity Act, it may still qualify as a public body under FOIA.

In addition, the subsidiary body test should remain flexible to account for other situations. Courts should also consider, for example, the extent to which the entity has sought and obtained the protection of immunity statutes of the sort typically reserved for governmental entities. After all, an entity that seeks to enjoy the benefits of being treated like government should also abide by the requirements of FOIA. Similarly, an entity found to have engaged in state action under civil rights laws should ordinarily qualify as a public body as well. *See IHSA App. Ct. Br.* at 19-20 (relying on state-actor cases). Other cases may warrant additional considerations that should not be foreclosed. *Cf.* 1 Nahmod, *Civil Rights & Civil Liberties Litigation: The Law of Section 1983* § 2:4 (“There are no hard and fast rules for determining the presence of state action. Indeed, the Supreme Court has emphasized repeatedly that the state action inquiry must be made on a case-by-case basis.”); *Lugar v. Edmondson Oil Co., Inc.*, 457 U.S. 922, 939 (1982)

(“The Court suggested that that ‘something more’ which would convert the private party into a state actor might vary with the circumstances of the case. This was simply a recognition that the Court has articulated a number of different factors or tests in different contexts[.] Whether these different tests are actually different in operation or simply different ways of characterizing the necessarily fact-bound inquiry that confronts the Court in such a situation need not be resolved here.”).

ii. “Governmental Function”

FOIA also applies when a public body “has contracted to perform a governmental function on behalf of a public body.” 5 ILCS 140/7(2). A record that “directly relates to the governmental function and is not otherwise exempt” is considered a “public record of the public body” who contracted for the performance of the governmental function. *Id.* The statute does not define “governmental function,” but the statutory purpose of FOIA requires that the term be given a liberal construction in favor of disclosure. 5 ILCS 140/1; *Stern v. Wheaton–Warrenville Community Unit School District 200*, 233 Ill. 2d 396, 405 (2009).

As District 230 itself argued to the First District, “governmental function” has been defined by Black’s Law Dictionary as “a government agency’s conduct that is expressly or impliedly mandated or authorized by constitution, statute, or other law and that is carried out for the benefit of the general public.” Dist. 230 App. Ct. Br. at 8. In *Carroll v. Paddock*, in the more narrowly defined context of tort immunity, this Court defined “public business” as “[b]elonging to the people at large, not limited or restricted to any particular class of the community.” 199 Ill. 2d 16, 26 (2002). In the FOIA context, the Fourth District has defined the similar term “public business” as “pertain[ing] to ‘business or community interests as opposed to private affairs.’” *City of*

Champaign v. Madigan, 2013 IL App (4th) 120662, ¶ 31 (quoting Merriam-Webster's Collegiate Dictionary).

Taking all this into account, this Court should hold that “governmental function” includes at least the following: (1) functions that the unit of government is required to conduct; and (2) discretionary functions that benefit the general public or relate to community interests. This is consistent with the purpose of the FOIA statute: when the government delegates its legal obligations or actions that are supposed to be for the benefit of the general public, it is essential that the people know whether those contractors are acting in the public interest so that, if not, the people may hold them and the government responsible. 5 ILCS 140/1 (“The General Assembly hereby declares that it is the public policy of the State of Illinois that access by all persons to public records promotes the transparency and accountability of public bodies at all levels of government.”).

VIII. ARGUMENT

A. The Need For Transparency When Government Delegates Its Functions To Facially Private Entities

Over the past few decades, things as fundamental as access to water, libraries, public transit, fire protection, prisons, and even policing have been privatized. *E.g.*, F. Lopez-de-Sians, et al., 28 RAND J. of Econ. 447, 448 (Autumn 1997). As described in more detail in the brief of proposed *amici*, our state has recently created several facially private entities to perform functions like managing statewide economic development. The question before this Court is not whether privatization is good or bad. Rather, the question is whether transparency under FOIA will be protected in the process.

Without guarantees of transparency, “[p]rivatization of facilities and services decreases both accountability and transparency.” *E.g.*, K. Hogan, Protecting the Public in Public-Private Partnerships: Strategies for Ensuring Adaptability in Concession Contracts, 2014 Colum. Bus. L. Rev. 420, 432–33 (2014).

When governments are responsible for providing services to their citizens, they must consider the public interest at all times. If they do not do so and the quality of the service suffers, citizens can hold public officials accountable for their actions by voting them out of office. When services are privatized, however, this accountability disappears. Private partners are accountable only to the terms of the concession agreement that they signed and not to any greater notion of public interest. Privatization also decreases transparency. Governmental transparency is normally achieved by publishing the regulations and procedures that guide government action. The public can easily access information regarding proposed or actual government action, allowing for meaningful public participation in the workings of a democratic government. Privatization transfers decision-making power over service delivery and facility operations to the private sector, which operates out of public view, thus decreasing transparency.

Id.

A lack of transparency when governmental functions are privatized not only reduces accountability, but can have a fundamental impact (without any informed public input) on substantive policies:

For decades, policymakers have been privatizing government responsibilities for the customary, and ostensibly exclusive, objective of providing the public with the same goods and services more efficiently. It is becoming increasingly apparent that these policymakers are also doing something different: they are using that purportedly technocratic process to substantively alter the very policies they are supposed to be neutrally administering. And, it is working: these privatization ‘workarounds’ can directly change the content of public education, health, and social welfare programs, the outcome of regulatory enforcement and rulemaking proceedings, and the trajectory of police and national security operations.

J. Michaels, Privatization’s Pretensions, 77 U. Chi. L. Rev. 717, 717 (2010).

While there are many socially important areas that have been or in the future may be privatized, policing is one especially sensitive example. As the events of the last year

in the City of Chicago have made clear, transparency into policing and potential misconduct by officers is essential to monitoring the police and ensuring just policing. Unfortunately, under the First District's ruling in this case, municipalities who want to avoid public scrutiny of their police departments could potentially privatize them and argue that transparency no longer applies.

This is not a far-fetched possibility. Since the late 1960s, private security firms have grown rapidly.³ They were once viewed with suspicion and distrust, but “over the last two decades, governments have come to accept and even encourage private police as a necessary tool for crime prevention and the protection of property.”⁴ Some perform services and functions normally conducted by sworn police officers.⁵ The University of Chicago Police Department, a “private” police force employed by the university with full police powers, patrols a six square mile area that includes 65,000 residents, of which 50,000 are not students.⁶

It is against this background that this Court addresses the interpretation of two important provisions of FOIA meant to protect transparency when governmental functions are performed by facially private entities.

B. Overview Of The Issues In This Appeal

There are two independent reasons that BGA should prevail in this case. First, IHSA is a subsidiary body under FOIA. Second, IHSA performs a governmental

³ Malcolm K. Sparrow, *Managing the Boundary Between Public and Private Policing*, New Perspectives In Policing Bulletin (Sept. 2014), <https://www.ncjrs.gov/pdffiles1/nij/247182.pdf> (last accessed November 30, 2016).

⁴ Stephen Rushin, *The Regulation of Private Police*, 115 W. Va. L. Rev. 159, 162 (2013).

⁵ David A. Sklansky, *The Private Police*, 46 UCLA L. Rev. 1165, 1177 (1998).

⁶ Hannah K. Gold, *Why Does A Campus Police Department Have Jurisdiction Over 65,000 Chicago Residents?*, Vice News (Nov. 12, 2014), <http://www.vice.com/read/why-does-a-campus-police-department-have-jurisdiction-over-65000-chicago-residents-1112> (last accessed on November 30, 2016).

function under Section 7(2) of FOIA. These issues share a commonality: whether the function performed by IHSA is governmental.

If a function is governmental, then so long as the records directly relate to that function, Section 7(2) applies. 5 ILCS 140/7(2). In addition, the determination that an entity performs a governmental function is a factor, among others, that weighs heavily (and, in some cases, potentially dispositively) in favor of finding that the entity is a subsidiary body as well. Because Section 7(2) was added to FOIA well after the subsidiary body decisions were issued, Section 7(2) necessarily applies more broadly than the multi-factor subsidiary body test. *See Sylvester v. Indus. Comm’n*, 197 Ill. 2d 225, 232 (2001) (“Our primary goal, to which all other rules are subordinate, is to ascertain and give effect to the intention of the legislature. We determine this intent by reading the statute as a whole and considering all relevant parts. We must construe the statute so that each word, clause, and sentence, if possible, is given a reasonable meaning and not rendered superfluous, avoiding an interpretation which would render any portion of the statute meaningless or void.”).

Before turning to the question of whether IHSA performs a governmental function, however, a key threshold argument should first be considered.

C. IHSA Performs State Action, And Therefore Is Also A Public Body Under FOIA

As discussed above, the Seventh Circuit has found that IHSA performs state action for civil rights purposes. *Griffin High School v. Illinois High School Ass’n*, 822 F.2d 671, 674 (7th Cir. 1987). IHSA itself asked the First District in this case to rely on the U.S. Supreme Court’s state-actor civil-rights decision in *NCAA v. Tarkanian* to find that IHSA should not be a public body under Illinois FOIA. IHSA App. Resp. Br. at 19-

20. According to IHSA, it is no different from NCAA, and since a Florida appellate court noted that NCAA records “are not generally subject to public disclosure,” neither should IHSA be subject to Illinois FOIA. *Id.* Because there is no dispute that IHSA is a state actor, however, by IHSA’s own logic, it should be subject to Illinois FOIA.

While this Court need not re-evaluate the settled question of whether IHSA is a state actor, IHSA clearly is one. As noted in the *Tarkanian* decision relied on by IHSA, in which the NCAA was found not to be a state actor, “[t]he situation would, of course, be different if the membership consisted entirely of institutions located within the same State, many of them public institutions created by the same sovereign.” 488 U.S. 179, 193 n.13 (1988). That is indisputably the case as to IHSA. And the Supreme Court has since held that Tennessee’s version of IHSA was a state actor and noted that with the exception of the circuit it was in the process of reversing, “every Court of Appeals to consider a statewide athletic association like the one here has found it a state actor.” *Brentwood Academy v. Tennessee Secondary School Athletic Ass’n*, 531 U.S. 288, 304 (2001).

D. Education Is A Governmental Function, Which Triggers Section 7(2) And Also Weighs Heavily In Favor Of Finding IHSA To Be A Subsidiary Public Body

The Illinois Constitution states that “[a] fundamental goal of the People of the State is the educational development of all persons to the limits of their capacities.” Ill. Const. Art. X § 1. Both this Court and the United States Supreme Court have held that education is a governmental function. *Hadley v. Junior Coll. Dist. of Metro. Kansas City, Mo.*, 397 U.S. 50, 56 (1970); *Fumarolo v. Chicago Bd. of Educ.*, 142 Ill. 2d 54, 91, 116 (1990).

As IHSA's own documents make clear, there is not, and cannot be, any dispute that IHSA performs an educational function and that its very mission is to enhance the educational experience. C00037. "The IHSA governs the equitable participation in interscholastic athletics and activities that enrich the educational experience. *** Participation in such interscholastic activities offers eligible students experiences **in an educational setting** which provide enrichment to the educational experience." *Id.* (emphasis added). This is consistent with the goal set forth in our state Constitution, which seeks not merely the bare minimum amount of education, but "the educational development of all persons to the limits of their capacities." *See also* Illinois High School Association, About the IHSA ("Opportunity for boys and girls to represent their school and community as they participate in interscholastic activities is a privilege unique to young people in American education. Why? Because educators across the USA believe that participation in interscholastic activities offers students significant lifetime learning experiences that cannot be duplicated in any other instructional setting."), *available at* <http://www.ihsa.org/AbouttheIHSA/MissionStatementBeliefs.aspx> (last accessed Nov. 29, 2016).

Similarly, as noted by the United States Supreme Court in finding Tennessee's high school association to be a state actor for civil rights purposes:

Interscholastic athletics obviously play an **integral part** in the public education of Tennessee, where nearly every public high school spends money on competitions among schools. Since a pickup system of interscholastic games would not do, these public teams **need** some mechanism to produce rules and regulate competition. The mechanism is an organization overwhelmingly composed of public school officials who select representatives (all of them public officials at the time in question here), who in turn adopt and enforce the rules that make the system work. Thus, by giving these jobs to the Association, the 290 public schools of Tennessee belonging to it can sensibly be seen as exercising their own authority to meet their own **responsibilities**.

Brentwood Academy, 531 U.S. at 299 (emphasis added).

Nearly every public high school in the state is an IHSA member, and any high school that wants to participate in interscholastic competition must join IHSA or else it will have few or no schools against which it can compete. C00137. IHSA's own governing documents acknowledge the importance that parents and communities place on school-sponsored athletics, and thus the essential nature of high school athletics to our education system, because those documents set forth rigorous rules governing both student residency and the ability of schools to recruit student athletes. C00079, C00081, C00085-87. The notion that school districts could simply eliminate high school sports or decline to participate in any sports governed by IHSA does not reflect reality. There is a reason that these sports and other competitions are school sponsored.

IHSA promotes and regulates all aspects of competitions under its purview, and its actions are expressly intended to enrich the educational experience in an educational setting. Its rules and bylaws extend deeply and pervasively, and it sets or helps to set safety protocols and equal access rules for all high schools, even those that are not IHSA members. Simply put, according to IHSA itself, "there can be little doubt that the business of the association is public business." C00139. IHSA performs a governmental function.

E. The Records Directly Relate To IHSA's Governmental Function

Under Section 7(2), the requested vendor contracts, sponsorship agreements, and other records relate to IHSA's governmental function. IHSA is not a for-profit contractor that also performs work for non-government clients. The sole and entire purpose of IHSA's activities is to regulate and promote high school athletics and other competitions

for the benefit of the general public. C00049. Thus, the records directly relate to IHSA's governmental function.

F. The Remaining Subsidiary Body Factors Also Support Transparency

i. IHSA Is "Owned And Controlled" By Government

According to IHSA itself, "its overwhelmingly local public school membership 'owns' the association and exercises its control over the organization[.]" C00141. Approximately 85% of IHSA's members are public high schools, and this overwhelmingly local public school membership controls IHSA through the election of representatives and engagement in its legislative process. C00137, C00141. "Clearly, local governmental control of the organization is pervasive." C00141. As a result, this factor strongly weighs in favor of transparency. *See also Brentwood Academy*, 531 U.S. at 296-300.

ii. IHSA Does Not Exist Independent From Government Resolution

IHSA regulates and promotes high school athletics and other competition for public schools who, by their own governmental acts, have delegated their authority to IHSA. C00142. ("By associating as the IHSA, the schools of the State of Illinois have merely contracted to work together in a certain manner to oversee athletic and other activities."). In addition, the General Assembly has granted, by statute, a number of important regulatory and advisory functions to IHSA, as well as immunity for certain types of lawsuits related to IHSA's work. 105 ILCS 5/10-20.54(b), (c) (concussion policies); 105 ILCS 5/27-1 (equal access rules); 745 ILCS 54/1 (immunity). Thus, this factor also supports transparency.

iii. IHSA Receives Significant Financial Support From Government

Finally, IHSA earns revenue largely from the efforts of public school students in events held at public facilities. C00050; C00056. The Supreme Court has persuasively made clear that this qualifies as financial support. *See Brentwood Academy*, 531 U.S. at 299 (“The Association thus exercises the authority of the predominantly public schools to charge for admission to their games; the Association does not receive this money from the schools, but enjoys the schools’ moneymaking capacity as its own.”). IHSA also has the power to assess dues to its members, which are predominantly public schools, to fund IHSA’s activities directly. C00050; C00056.

All of these factors, as well as the fact that IHSA is a state actor under civil rights laws and has argued for governmental tort immunity, support the conclusion that IHSA, who is responsible for regulating and promoting high school athletics and other forms of competition at nearly every public high school in this state, is subject to the state’s transparency laws.

G. Both Motions Were Procedurally Flawed

While this appeal can be resolved on the substantive merits, both motions were procedurally flawed and should be reversed on these additional bases.

i. IHSA’s Section 2-619 Motion To Dismiss Was Improper For Multiple Reasons

IHSA’s motion is more accurately characterized as an answer which did nothing but claim that BGA’s pleadings are “not true.” *See Reynolds v. Jimmy John’s Enterprises, LLC*, 2013 IL App (4th) 120139, ¶ 35; *Howle v. Aqua Illinois, Inc.*, 2012 IL App (4th) 120207, ¶ 36; *Winters v. Wangler*, 386 Ill. App. 3d 788 (2008). The entirety of

IHSA's motion was devoted to denying allegations relevant to the subsidiary body factors. R.VI, C00143; Supp.R.VIII, 29:20-29:22.

Even if IHSA's motion did more than merely deny the allegations in the Complaint, however, it failed to do so properly. Under Rule 2-619, the affirmative matter must be supported by affidavit. Yet the affidavit submitted by IHSA addressed only the "separate existence" and "government support" factors, saying nothing of any significance about the remaining factors and failing to respond to the substantial and detailed allegations that IHSA is owned and controlled by local government and performs public business. R.V1, C00154-156. Therefore, the motion lacked adequate affidavit support and should have been denied. *See Kedzie & 103rd Currency Exch., Inc. v. Hodge*, 156 Ill. 2d 112, 116 (1993) ("By presenting adequate affidavits supporting the asserted defense [citation omitted], the defendant satisfies the initial burden of going forward on the motion.").

Even if IHSA's motion did more than deny the allegations in the Complaint and even if it did so based on an adequate affidavit, BGA still more than adequately raised material fact issues under the subsidiary body test. As discussed in detail above, BGA has offered significant evidence on each of the subsidiary body factors.

ii. District 230's Section 2-615 Motion to Dismiss Failed To Treat The Well-Pled Allegations As True

In the Complaint, BGA alleged that IHSA "performs a governmental function, including control of all aspects of high school competition for the vast majority of Illinois high schools." C00005 at ¶ 3. BGA also pled that IHSA is "an agency of the collective schools of the state" and that IHSA is the result of schools acting collectively through IHSA, such that IHSA's governmental function is performed on behalf of member

schools. C00008 at ¶¶ 34, 35. These allegations were more than adequate to survive District 230's motion to dismiss. *See Fox v. Seiden*, 382 Ill. App. 3d 288, 294 (2008).

IX. CONCLUSION

For these reasons, BGA respectfully asks that the Court reverse the circuit court and ensure the robust transparency for privatized governmental functions that the General Assembly has set forth in the FOIA statute.

RESPECTFULLY SUBMITTED,

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X. CERTIFICATION OF COMPLIANCE

I certify that this brief conforms to the requirements of Rules 341(a) and (b). The length of this brief, excluding the pages containing the Rule 341(d) cover, the Rule 341(h)(1) statement of points and authorities, the Rule 341(c) certificate of compliance, the certificate of service, and those matters to be appended to the brief under Rule 342(a), is 29 pages.

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